Liability Waiver, Release and Assumption of Risk

Thanks for joining us! This is the agreement between you and Sun Brewed Homestead Inc. ("the Homestead") for taking part, or your child taking part, in any activity at or organized by the Homestead, including volunteering, workshops, events and visits. Please read all of it, especially the boxed release, and ask a Steward about anything unclear before you sign. Below, "I" means you.

In plain words

- You can say no to any task, or stop, at any time, and we'll show you how to do things safely.
- Farm work has real risks. **If you get hurt, even through our ordinary carelessness, you agree not to sue us.** That doesn't cover gross negligence or harm done on purpose.
- Tell a lead about allergies or health conditions, and follow safety instructions.

This summary is here to help. The numbered sections below are the agreement itself.

1. Activities and risks. Homestead activities take place on a working urban farm and may include gardening, composting, digging, lifting, using hand and power tools, working with irrigation and water, handling soil, plants and compost, working in sun and heat, and being around goats, chickens and cats. I understand these activities carry risks, including slips and falls, cuts, strains, insect stings, allergic reactions, sun and heat illness, exposure to soil-borne organisms and animal-related injuries such as bites, scratches, kicks and zoonotic illness. I understand that not every risk can be listed or foreseen.

2. RELEASE OF LIABILITY AND ASSUMPTION OF RISK

Please read this box carefully. It gives up your right to sue us if you are hurt, including by our own carelessness.

INITIALS

Assumption of risk. I participate voluntarily. I knowingly assume all risks of participating, both known and unknown, even if they arise from the ordinary negligence of the Homestead or others.

Release. To the fullest extent permitted by law, I, for myself, for any child I sign for, and for our heirs and estates, release, waive and agree not to sue Sun Brewed Homestead Inc., its directors, officers, volunteers, members and agents ("Released Parties") for any injury, illness, death, or loss of or damage to property arising from my participation or my presence at the Homestead or its events, INCLUDING CLAIMS ARISING FROM THE ORDINARY NEGLIGENCE OF THE RELEASED PARTIES. This release does not apply to gross negligence, willful misconduct, or any claim the law does not allow to be released.

Indemnity. I agree to indemnify and hold harmless the Released Parties from claims brought by me or on my behalf that this agreement releases.

California Civil Code § 1542. I waive the protection of § 1542, which reads: *"A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."*

3. Health and safety. I confirm I am physically able to participate and will tell a Homestead lead about any condition or allergy (for example to bee stings, animals or plants) that could affect my safety. The Homestead will show me how to do tasks safely, and I may say no to any task or stop at any time. I will follow safety instructions, wear closed-toe shoes, and stop and tell a lead if anything feels unsafe. I authorize the Homestead to obtain emergency medical care for me or my child if I cannot be reached, at my expense.

4. Minors. If I sign for a participant under 18, I am their parent or legal guardian, I agree to this document on their behalf and my own, and I will supervise them unless a Homestead lead agrees otherwise.

5. General. This agreement is governed by California law. If any part is held unenforceable, the rest remains in effect. It stays in effect for all my future participation unless I revoke it in writing. I agree to sign electronically, and my electronic signature and initials bind me as if written by hand. **I have read this agreement and had the chance to ask questions about it. I understand I am giving up substantial rights, including the right to sue, and I sign it voluntarily.**

Signed electronically. If the participant is under 18, a parent or legal guardian signs on their behalf.

SIGNATURE

DATE

PRINTED NAME

EMAIL